

TERMS OF SERVICE

Version: 1.0

Effective date: 13 July 2026

1. About these Terms

These Terms of Service (“Terms”) govern:

- Access to and use of the Sunny Forex website;
- Registration for available Sunny Forex services;
- Use of customer portals and approved digital channels;
- Remittance and payout services;
- Foreign-exchange services;
- Transactions submitted through branches, agents, subagents or approved partners; and
- Other services expressly made subject to these Terms.

These Terms form an agreement between the customer (“you” or “your”) and:

Sunny Forex & Remittance Ltd

Company registration number: C.138645

Central Bank of Kenya licence number: BSD/14/026/2026.

Registered office: Lavington Avenue Complex, Ground Floor, James Gichuru Road, Lavington, Nairobi, Kenya

Website: www.sunnyremit.com

Product-specific terms, transaction receipts, fee disclosures or partner terms may also apply.

Where product-specific terms conflict with these general Terms, the product-specific terms will apply to that product to the extent of the conflict.

2. Acceptance

You accept these Terms when you:

- Tick or select an acceptance box;
- Register for a service;
- Submit a transaction instruction;
- Sign a transaction form;
- Use a service after the Terms have been presented to you; or
- Otherwise indicate acceptance through an approved channel.

Before entering into an online transaction, you should be given a reasonable opportunity to:

- Review the applicable information;
- Correct transaction errors;
- Accept or decline the agreement; and
- Retain or receive a copy of the applicable terms and transaction information.

Do not use the service where you do not understand or agree to the applicable Terms.

3. Eligibility

To use Sunny Forex services, you must:

- Be at least 18 years old or otherwise legally capable of entering into the transaction;
- Provide accurate and complete information;
- Act for yourself unless you disclose and prove authority to act for another person;
- Use funds obtained from lawful sources;
- Use the service for a lawful purpose;
- Comply with applicable country and product restrictions; and
- Complete required identification and verification.

Transactions involving minors, representatives, powers of attorney, corporate customers or other special circumstances may be subject to additional requirements.

4. Customer registration and verification

Sunny Forex may require you to provide:

- Identification documents;
- Contact and address information;
- Occupation or business information;
- Transaction purpose;
- Sender and beneficiary information;
- Source-of-funds information;
- Source-of-wealth information where appropriate;
- Beneficial-ownership information;
- Corporate documents;
- Authority or mandate documents; and
- Other information reasonably required for legal, regulatory, fraud-prevention or risk-management purposes.

Sunny Forex may verify information using independent or official sources.

You authorize Sunny Forex to carry out reasonable verification, fraud-prevention, sanctions, PEP and compliance checks.

Registration or successful completion of a previous transaction does not guarantee acceptance of a future transaction.

5. Your responsibilities

You must:

- Provide complete, current and accurate information;
- Check transaction information before confirmation;
- Provide the correct beneficiary name, telephone number and account details;
- Provide the true transaction purpose;
- Disclose when acting for another person;
- Keep your contact information current;
- Protect passwords, access codes and verification codes;
- Prevent unauthorized use of your account or identity;
- Notify Sunny Forex promptly of suspected unauthorized activity;
- Retain transaction receipts and references; and
- Cooperate with reasonable verification requests.

You may be responsible for losses resulting from incorrect information you provide, subject to applicable law and Sunny Forex's own obligations.

6. Available services

Sunny Forex may provide some or all of the following services:

- Outward international money remittance;
- Inward remittance payout;
- Branch cash payout;
- Inter-branch remittance;
- M-Pesa or other approved mobile-money payout;
- Bank-account payout;
- Foreign-exchange transactions;
- Third-party remittance-provider services;
- Transaction inquiry and tracking;
- Customer registration and verification; and
- Other services approved by the Central Bank of Kenya.

Availability may depend on:

- Country;
- Currency;
- Branch;
- Agent or partner;
- Customer type;
- Transaction amount;
- Funding method;
- Operating hours;
- System availability;
- Cash or currency availability;
- Compliance requirements; and
- Applicable law.

The website may describe services that are not available online. Unless expressly stated, website content does not guarantee that a service can be completed through the website.

7. Transaction instructions

A transaction instruction is treated as received when:

- Sunny Forex receives the required information;
- Required funds have been received or confirmed;
- Applicable verification has been completed;
- The instruction passes required system and compliance checks; and
- Sunny Forex accepts the transaction for processing.

An automatically generated reference or acknowledgment does not necessarily mean that the transaction has been finally accepted or completed.

You must review all transaction information before confirmation.

Sunny Forex is not responsible for errors that could not reasonably have been detected where the information was entered or approved by you, subject to applicable law.

8. Sender and beneficiary information

You must provide complete and accurate sender and beneficiary information.

This may include:

- Full legal name;
- Identity information;
- Address;
- Telephone number;
- Bank or mobile-money account details;
- Relationship between sender and beneficiary;
- Transaction purpose; and
- Other information required for the selected service.

Sunny Forex may suspend or reject a transaction containing missing, inaccurate, inconsistent or unverified information.

A beneficiary may be required to:

- Provide acceptable identification;
- Provide the transaction reference;
- Answer verification questions;
- Confirm relevant transaction details; and
- Sign or electronically acknowledge receipt.

9. Exchange rates, fees and charges

Before confirming a transaction, Sunny Forex will disclose the applicable information required for the service, including:

- Sending amount;
- Sending currency;
- Exchange rate;
- Service fee or commission;
- Other disclosed charges;
- Payout amount;
- Payout currency; and
- Total amount payable.

Exchange rates may include a margin and may differ from rates displayed by banks, central banks, financial websites or other providers.

A quoted rate is valid only for the period or transaction for which it is offered.

The rate may change where:

- The transaction is not funded within the quote period;
- The customer changes the transaction;
- The transaction is cancelled and re-entered;
- A material pricing or market error occurred;
- A third-party provider rejects or returns the transaction; or
- Applicable law requires a change.

Sunny Forex will not impose an undisclosed charge.

Third-party banks, mobile-money providers or beneficiary institutions may impose separate charges where permitted and disclosed or where those charges are outside Sunny Forex's control.

10. Payment and funding

Sunny Forex may accept approved funding methods including:

- Cash;
- Bank transfer;
- Mobile money;
- Approved cards or digital payments, where available; and
- Other approved methods.

Sunny Forex may refuse:

- Third-party funding;
- Funding from an unverified source;
- Funds from an account not matching the customer;

- Cash that appears counterfeit or suspicious;
- Overpayments;
- Duplicate payments; or
- Payments that fail compliance or fraud controls.

A funding confirmation does not override applicable compliance checks.

11. Processing and delivery estimates

Any processing, payout or delivery time provided is an estimate unless expressly stated otherwise.

A transaction may be delayed by:

- Customer-verification requirements;
- Compliance review;
- Incorrect or incomplete information;
- Beneficiary verification;
- Bank processing;
- Mobile-money processing;
- Payout-partner processing;
- Cut-off times;
- Weekends or public holidays;
- Currency or cash availability;
- System outages;
- Network interruptions;
- Regulatory action;
- Events outside Sunny Forex's reasonable control; or
- The recipient country's requirements.

Sunny Forex does not guarantee instant or same-day completion unless an applicable product term expressly provides such a guarantee.

12. Transaction limits

Sunny Forex may apply:

- Per-transaction limits;
- Daily, weekly or monthly limits;
- Currency limits;
- Country or corridor limits;
- Customer-risk limits;
- Product limits;
- Branch or agent limits;
- Cash limits;
- Mobile-money limits; and
- Regulatory limits.

Sunny Forex may change or reduce a limit where required by law, risk, partner requirements, funding availability or operational conditions.

Limits must not be treated as permission to split transactions to avoid controls.

13. AML, sanctions and fraud reviews

Sunny Forex may request information, delay processing or restrict a transaction to comply with:

- KYC and customer-due-diligence requirements;
- AML/CFT/CPF obligations;
- Sanctions and targeted financial-sanctions requirements;
- Fraud-prevention controls;
- Regulatory directions;
- Court orders; and
- Other applicable legal obligations.

Sunny Forex may be unable to explain the detailed reason for a delay, restriction, report or rejection where disclosure is legally prohibited.

These Terms do not require Sunny Forex to process a transaction that it cannot safely or lawfully process.

14. Cash pickup

For cash-pickup transactions:

- The beneficiary must attend an approved payout location;
- Acceptable identification may be required;
- The beneficiary's details must match the transaction;
- The beneficiary may be asked verification questions;
- Cash payment remains subject to availability and compliance checks;
- A transaction cannot normally be cancelled after payment; and
- Sunny Forex may refuse payment where identity or transaction information cannot be verified.

A person collecting for another beneficiary must provide satisfactory legal authority where such collection is permitted.

15. Mobile-money payouts

For an M-Pesa or other mobile-money payout:

- The mobile number must be correct and eligible;
- The registered mobile-money account details may need to match the beneficiary;

- The transaction is subject to the mobile-money provider's availability and limits;
- The provider may reject, delay, reverse or suspend a transaction;
- Provider charges may apply where disclosed; and
- Incorrect mobile numbers may result in payment to an unintended person.

You must check the mobile number before confirmation.

Recovery of funds sent to an incorrect but valid mobile account is not guaranteed.

Sunny Forex will take reasonable steps to request recovery where legally and operationally possible.

16. Bank-account payouts

For a bank-account payout:

- You must provide the correct bank, branch, account name and account number;
- Additional bank information may be required;
- The recipient bank may carry out its own verification;
- The bank may reject or return a transaction;
- Bank and intermediary charges may apply;
- Processing may be affected by banking days and cut-off times; and
- Incorrect account details may cause delay, rejection or payment to an unintended account.

Sunny Forex will take reasonable steps to request recovery of an erroneous payment where legally and operationally possible, but recovery is not guaranteed.

17. Third-party remittance providers

Some services may be processed through third-party providers such as international remittance networks, banks, mobile-money operators or payout partners.

Third-party terms and operating requirements may apply.

Sunny Forex may provide information to the relevant provider to complete, reconcile, investigate or reverse the transaction.

Sunny Forex remains responsible for its own obligations but is not responsible for independent acts or failures of third parties beyond the extent imposed by applicable law.

18. Cancellation

You should contact Sunny Forex immediately where you wish to cancel a transaction.

Cancellation may be permitted only where:

- The transaction has not been paid;
- The transaction has not been irreversibly sent;
- The payout partner can stop processing;
- No legal or regulatory restriction prevents cancellation; and
- Required verification has been completed.

A transaction normally cannot be cancelled after:

- Cash has been collected;
- Funds have reached the beneficiary's mobile-money account;
- Funds have been credited to the beneficiary's bank account; or
- The transaction has otherwise become irreversible.

Sunny Forex may request written instructions or identification before accepting a cancellation.

19. Refunds

Where a refund is approved:

- The refund will normally be made to the original customer or original funding source;
- Identity and compliance checks may be required;
- Third-party charges that cannot be recovered may be deducted where lawfully disclosed;
- Exchange-rate differences may apply where legally and contractually permitted;
- A refund may be delayed by an investigation, legal restriction or third-party process; and
- Sunny Forex will provide applicable refund information.

No deduction will be made where prohibited by law.

A refund does not prevent Sunny Forex from retaining records required by law.

20. Failed, returned and reversed transactions

A transaction may fail, be returned or be reversed because of:

- Incorrect beneficiary information;
- Closed or restricted account;
- Ineligible mobile number;
- Beneficiary refusal;
- Partner rejection;
- Insufficient funding;
- Duplicate submission;
- System or network error;

- Compliance restriction;
- Legal order; or
- Other operational reasons.

Sunny Forex will determine whether the transaction should be:

- Corrected;
- Retried;
- Cancelled;
- Refunded;
- Returned to the original funding source; or
- Referred for investigation.

Sunny Forex will not knowingly process the same transaction twice.

You must notify Sunny Forex promptly where you suspect a duplicate debit or payment.

21. Fraud and scams

You must not use Sunny Forex to send money in connection with fraud or a scam.

Exercise particular caution where a person:

- Requests urgent or secret payment;
- Claims that payment is required to release a prize or inheritance;
- Threatens arrest or legal action;
- Claims to be a relative in an emergency;
- Requests payment during an online romantic relationship;
- Promises unrealistic investment returns;
- Asks you to receive and forward money;
- Requests your verification code or account password; or
- Instructs you to provide false transaction information.

Contact Sunny Forex immediately where fraud or unauthorized activity is suspected.

Sunny Forex cannot guarantee recovery after funds have been paid to a fraudster or unintended recipient.

22. Prohibited use

You must not use Sunny Forex services to:

- Break any law;
- Launder money;
- Finance terrorism or proliferation;
- Evade sanctions;
- Commit fraud;
- Use another person's identity without authority;

- Submit forged or altered documents;
- Conceal the true sender, beneficiary or owner of funds;
- Split transactions to avoid controls;
- Operate an unauthorized money-transfer business;
- Transmit proceeds of crime;
- Send funds for prohibited goods or services;
- Interfere with systems or security;
- Introduce malware;
- Attempt unauthorized access;
- Abuse an API or digital channel;
- Submit duplicate or misleading transactions; or
- Violate another person's legal rights.

23. Suspension, restriction and termination

Sunny Forex may suspend, restrict or terminate access to a service where:

- These Terms are breached;
- Required verification is incomplete;
- Fraud or unauthorized access is suspected;
- The service is being misused;
- A legal or regulatory obligation applies;
- A partner suspends the relevant service;
- Continued provision creates material legal or security risk; or
- The service is withdrawn.

Where legally permitted, Sunny Forex will provide appropriate information about a restriction or termination.

Termination does not affect:

- Completed transactions;
- Existing payment obligations;
- Legal rights already accrued;
- Investigation or reporting obligations; or
- Record-retention requirements.

24. Website use

Website content is provided for general information about Sunny Forex and its services.

You must not:

- Copy or exploit website content without authorization;
- Interfere with website operation;
- Attempt unauthorized access;
- Scrape or extract data without permission;
- Misrepresent affiliation with Sunny Forex;

- Use Sunny Forex branding unlawfully; or
- Use the website for malicious or unlawful purposes.

Sunny Forex may change, suspend or withdraw website functionality.

25. Intellectual property

Sunny Forex and its licensors own or are authorized to use the:

- Website;
- Trade names;
- Logos;
- Designs;
- Software;
- Text;
- Images;
- Databases; and
- Other protected content.

You receive a limited, revocable and non-transferable right to use the website for lawful personal or authorized business purposes.

No ownership rights are transferred to you.

26. External links

Links to third-party websites are provided for convenience.

Sunny Forex does not control independent third-party websites and is not responsible for their:

- Content;
- Availability;
- Security;
- Products;
- Terms; or
- Privacy practices.

27. Liability

Sunny Forex will exercise reasonable care and skill in providing its services.

Nothing in these Terms excludes or limits liability that cannot lawfully be excluded or limited.

Subject to applicable law, Sunny Forex will not be responsible for losses caused solely by:

- Incorrect information provided by you;
- Failure to protect passwords or verification codes;
- An unauthorized instruction that Sunny Forex could not reasonably identify;
- Delays or failures by independent third-party providers;
- Events outside Sunny Forex's reasonable control;
- Failure to follow fraud warnings;
- Use of the service for a prohibited purpose; or
- Failure to notify Sunny Forex promptly of an error.

Any limitation of liability must be applied fairly, reasonably and consistently with applicable consumer law.

Sunny Forex is not liable for indirect or consequential loss to the extent that exclusion is permitted by law.

28. Indemnity

To the extent permitted by law, you may be responsible for reasonable losses, costs or claims suffered by Sunny Forex as a direct result of:

- Deliberate fraud;
- Unauthorized use of another person's identity;
- Knowing submission of false information;
- Deliberate misuse of the service;
- Breach of applicable law; or
- Material breach of these Terms.

This section does not apply to losses caused by Sunny Forex's negligence, unlawful conduct or breach of its own obligations.

29. Events outside reasonable control

Sunny Forex will not be responsible for delay or failure caused by events outside its reasonable control, including:

- Natural disasters;
- War or civil disturbance;
- Government action;
- Regulatory restrictions;
- Telecommunications failure;
- Widespread power failure;
- Cyberattacks despite reasonable safeguards;
- Banking-system failure;
- Mobile-network failure;
- Labour disruption;
- Public-health emergencies; or
- Failure of critical third-party infrastructure.

Sunny Forex will take reasonable steps to reduce the effect of such an event.

30. Complaints

Complaints may be submitted through:

Customer Care: [INSERT EMAIL]

Telephone: [INSERT TELEPHONE NUMBER]

Physical address: [INSERT ADDRESS]

Online complaints form: [INSERT LINK OR DESCRIPTION]

A complaint should include:

- Customer name;
- Contact details;
- Transaction reference;
- Date and amount;
- Description of the complaint;
- Supporting documents; and
- Requested resolution.

Sunny Forex will acknowledge, investigate and respond within its published complaints-handling timelines.

Where a complaint is not resolved, the customer may use any escalation mechanism available under applicable law or through the relevant competent authority.

31. Personal data

Sunny Forex processes personal data in accordance with its Privacy Policy and applicable law.

Personal data may be processed for:

- Transaction execution;
- Customer verification;
- AML/CFT/CPF compliance;
- Sanctions screening;
- Fraud prevention;
- Regulatory reporting;
- Security;
- Customer support; and
- Other lawful purposes described in the Privacy Policy.

Acceptance of these Terms is not the same as consent to optional direct marketing.

32. Electronic communications

You agree that Sunny Forex may communicate with you through approved channels including:

- Email;
- SMS;
- Telephone;
- Website notices;
- Customer portal;
- Mobile application;
- Receipts; and
- Other contact details you provide.

Electronic records and communications may be used as evidence of instructions, notices, acceptance and transactions, subject to applicable law.

You must keep your contact information current.

33. Changes to these Terms

Sunny Forex may update these Terms because of:

- Changes in law or regulation;
- Regulatory directions;
- Changes to services;
- Security requirements;
- New technologies;
- Changes to partners; or
- Business and operational requirements.

The updated Terms will show their version, effective date and last-updated date.

Material changes will be communicated through an appropriate channel.

Where legally required, Sunny Forex will obtain fresh acceptance before the updated Terms apply.

The version applicable to a transaction or customer relationship will generally be the version presented and accepted when the relevant transaction or relationship was established, subject to applicable law and any subsequently accepted amendment.

34. Transfer of rights

You may not transfer your rights or obligations under these Terms without Sunny Forex's written approval.

Sunny Forex may transfer its rights or obligations as part of a lawful merger, restructuring, business transfer or regulatory arrangement, provided customer rights are not unlawfully reduced.

35. Severability

Where a court or competent authority finds part of these Terms invalid or unenforceable, the remaining provisions will continue to apply.

The invalid provision will be interpreted or replaced to the minimum extent necessary to make it lawful and effective.

36. No waiver

Failure or delay by Sunny Forex to enforce a provision does not mean that Sunny Forex has waived that provision or any related right.

37. Governing law and jurisdiction

These Terms are governed by the laws of Kenya.

Disputes will be handled through:

- Sunny Forex's internal complaints process;
- Any applicable regulatory or alternative dispute-resolution mechanism; and
- The courts of competent jurisdiction in Kenya.

Nothing in this section removes any mandatory consumer right or legal remedy.

38. Contact information

Sunny Forex & Remittance Ltd

Lavington Avenue Complex, Ground Floor,
James Gichuru Road,
Lavington, Nairobi, Kenya

Customer Care: support@sunnyremit.com

Telephone: +254 722 590 049

Compliance: compliance@sunnyremit.com

Privacy: privacy@sunnyremit.com

Website: www. sunnyremit.com

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